Statutory Instrument 153 of 2014.

[CAP. 2:13

Electoral (Nomination of Candidates) Regulations, 2014

As amended by: SI 144/2022

IT is hereby notified that the Zimbabwe Electoral Commission, in terms of section 192 of the Electoral Act [*Chapter 2: 13*], has, with the approval of the Minister of Justice and Legal Affairs, made the following regulations:–

Title

l. These regulations may be cited as the Electoral (Nomination of Candidates) Regulations, 2014.

Interpretation

2. In these regulations—

"form" means the appropriate form set out in the First Schedule.

Forms

3.(1) The nomination paper—

(a) for a presidential candidate in terms of section 104(1) of the Act is in the form set out in the Ninth Schedule to the Act;

(b) for election as a constituency member of the National Assembly in terms of section 46(l) of the Act is in the form set out in the Ninth Schedule to the Act;

(c) for election to a local authority in terms of section 125(1) of the Act is in Form VN.l;

(d) for a party-list seat in the Senate in terms of section 45E of the Act is in Form VN.2:

(e) for a party-list seat in the National Assembly in terms of section 45E of the Act is in Form VN.3;

(f) for the party-list seat in a Provincial Council in terms of section 45E of the Act is in Form VN.4.

(2) The list supplied by political parties of national and provincial designated office-bearers who are authorised to countersign nomination papers to certify that a nominee is to stand for or is sponsored by the political party in terms of section 46(2a) of the Act is to be provided in Form VN.5.

(3) The certification of eligibility of a member of the Public Service for nomination as a candidate and election as a candidate in terms of section 119(5) of the Act is in Form VN.6.

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Fees on nomination

3[1].(1) The nomination fee of a candidate for election—

(a) to the office of President in terms of section 105 of the Act is a sum of twenty thousand United States dollars payable in cash or payable in Zimbabwean local currency at the official market rate;

[Paragraph amended by SI 144/2022]

(b) as a constituency member of the National Assembly in terms of section 47 of the Act is a sum of one thousand United States dollars or payable in Zimbabwean local currency at the official market rate payable in cash.[2]

[Paragraph amended by SI 144/2022]

(2) The fee payable by a political party in respect of a party list for the Senate, the National Assembly or the Provincial Council is a sum of two hundred United States dollars payable in cash or payable in Zimbabwean local currency at the official market rate for each political party list.

[Subsection amended by SI 144/2022]

Inspection of nomination paper after closing of sitting of nomination court

4.(1) For the purposes of section 45G of the Act. a registered voter may, after the close of the nomination court receiving party list nominations but no later than 1700 hours on the day following the close of the nomination court, inspect these nomination lists.

(2) For the purposes of section46(18)(b) of the Act, a registered voter may, after the close of the nomination court but no later than 1700 hours on the day following the close of the nomination court, inspect a nomination paper of a candidate for election as President or as a constituency member of the National Assembly.

Prohibited symbols

6. The symbols or representations of the animals, birds or things specified in the Second Schedule are declared to be prohibited symbols for the purposes of section 46 of the Act.

Amendment of S.I. 21 of 2005

7. The following provisions of the Electoral Regulations, 2005, published in Statutory Instrument 21 of 2005, are repealed—

(a) sections 6, 17 and 23;

(b) forms V.8, V.20, V.21 and V.22.

---

[1] This is the second section numbered 3.

[2] The paragraph as amended is garbled. It is probably supposed to read: "as a constituency member of the National Assembly in terms of section 47 of the Act is a sum of one thousand United States dollars payable in cash or payable in Zimbabwean local currency at the official market rate."

FIRST SCHEDULE (*Section 2*)

NOMINATION FORMS

Form VN.1

ELECTORAL ACT [*Chapter 2:13*]

(*Section 125*)

NOMINATION FORM – COUNCILLOR

NOTE: Aspiring candidate should produce:–

1. a birth certificate together with National Registration Identity Card (photocopies of the said documents are to be attached hereto);
2. a passport-size photograph.

We, the undersigned voters registered in ward ..... of .....

.....

(name of local authority)

Rural District Council / Urban Council* (*delete inapplicable*) hereby nominate:

..... I.D. number .....

of .....

.....

(*full address in block letters*)

as a candidate to represent the said ward in the local authority.

1. Full name: .....

(*block letters*)

National Registration Number ..... of

Residential address: .....

Signature: .....

Date: .....

Signed in the presence of: .....

(*Candidate / Chief Election Agent / Authorised Representative*)

2. Full name: .....

(*block letters*)

National Registration Number ..... of

Residential address: .....

Signature: .....

Date: .....

Signed in the presence of: .....

(*Candidate / Chief Election Agent / Authorised Representative*)

3. Full name: .....
(*block letters*)
National Registration Number ..... of
Residential address: .....
Signature: .....
Date: .....
Signed in the presence of: .....
(*Candidate / Chief Election Agent / Authorised Representative*)

4. Full name: .....
(*block letters*)
National Registration Number ..... of
Residential address: .....
Signature: .....
Date: .....
Signed in the presence of: .....
(*Candidate / Chief Election Agent / Authorised Representative*)

5. Full name: .....
(*block letters*)
National Registration Number ..... of
Residential address: .....
Signature: .....
Date: .....
Signed in the presence of: .....
(*Candidate / Chief Election Agent / Authorised Representative*)

6. Full name: .....
(*block letters*)
National Registration Number ..... of
Residential address: .....
Signature: .....
Date: .....
Signed in the presence of: .....
(*Candidate / Chief Election Agent / Authorised Representative*)

7. Full name: .....
(*block letters*)
National Registration Number ..... of
Residential address: .....
Signature: .....

Date: .....

Signed in the presence of: .....

(*Candidate / Chief Election Agent / Authorised Representative*)

8. Full name: .....

(*block letters*)

National Registration Number ..... of

Residential address: .....

Signature: .....

Date: .....

Signed in the presence of: .....

(*Candidate / Chief Election Agent / Authorised Representative*)

Note: Extra nominations may be made in anticipation of any nominator being found to be disqualified from making any nomination containing the same particulars and complying with same procedures as are here required of the minimum number of nominees[3].

DECLARATION BY OR ON BEHALF OF CANDIDATE

..... of

(*full name of candidate, in block letters*)

.....

(*address of candidate, in block letters*)

Candidate's telephone No. .....

I certify that:

1. The candidate is enrolled as a voter in ward ..... of ..... Rural District Council / Urban Council (*delete inapplicable*).
2. The candidate has been ordinarily resident in Zimbabwe for a period of not less than five years during the period of twenty years immediately preceding the date of this nomination paper.
3. The candidate is not disqualified for election in terms of section 119(2) of the Electoral Act.
4. Each of the persons nominating the candidate signed this nomination paper in the presence of the candidate or his or her chief election agent or his or her authorised representative.
5. The candidate accepts the nomination as a candidate for election as a Councillor.

Date …… Signature …..…….

Candidate/Candidate's Chief Election Agent**

DISTINCTIVE SYMBOL AND PARTY NAME ABBREVIATION

(*This part is to be completed if the candidate wishes a distinctive symbol and/or Party identification to appear on the ballot.*)

---

[3] This should read nominators.

1. *Distinctive Symbol*

The candidate wishes the following symbol to appear on the ballot paper in conjunction with his/her name:

(*Show drawing of symbol here*)

Short description of symbol: .....

2. *Party Identification*

The candidate will be standing for or be sponsored by the following party:

.....

.....

(full name of party in block letters)

and wishes the following abbreviation of the party's name to appear on the ballot paper in conjunction with his/her name:

.....

(*Block letters*)

Signature .....

Candidate/Candidate's Chief Election Agent**

3. *Party authorization* (to be completed by at least two designated political party office-bearers if the candidate has indicated that he/she wishes the abbreviation of a party's name to appear on the ballot paper in conjunction with his/her name)

We, ...

.....

(*full names in block letters*)

being the .....

(*state office held*)

on the .....

(*full name of political party*)

and, as such, duly authorised in terms of the constitution of the party, certify that the candidate to whom this nomination paper relates will stand for, or be sponsored by, the party.

Date.....

Signature .....

Signature .....

**Delete whichever does not apply*

***Note**: This form must be accompanied by a passport-sized photograph of the candidate.*

FOR OFFICE USE ONLY

Names of checkers:	1.	I.D. No. .....
(*print*)	2.	I.D. No. .....
	3.	I.D. No. .....

Verifier: ....

(*print*)

Nominators in voters roll, numbers: ☐ ☐ ☐ ☐ ☐ ☐

Nominators not in voters roll, numbers: ☐ ☐ ☐ ☐ ☐ ☐

A. This nomination paper is approved/accepted:

Presiding officer:..... I.D. No. .....

(*print full names*)

Signature: ..... Date: .....

B. This nomination paper is rejected because:

- Insufficient nominators
- Candidate not sponsored by given political party
- Candidate not in constituency voters roll where he or she wishes to contest
- Any other reason (*please state*):

.....

.....

.....

Presiding officer:..... I.D. No. .....

(*print full names*)

Signature: ..... Date: ..... Time: .....

Candidate: ..... I.D. No. .....

(*print full names*)

Signature: ..... Date: ..... Time: .....

Form VN.2

PARTY LIST CANDIDATES FOR SENATE PARTY LIST SEATS

PART XIA OF THE ELECTORAL ACT [*CHAPTER 2:13*]

Notes—

A political party contesting the National Assembly constituency elections may submit a party list for each Province in which it is contesting. The party list for each province must have on it 6 candidates.

This list must be lodged with the Provincial Elections Officer for the Province to which it relates on nomination day. The Provincial Elections Officer will be the Nomination Officer for that Province.

However, political parties are advised that it is in their interests to submit these lists to the head office of the Commission at least seventy-two hours before the nomination court sits so that the lists can be checked in advance of the sitting of the nomination court. In this way any problems with the list can be pointed out to the political party to enable it to rectify the problems timeously.

PART A

DETAILS OF PARTY SUBMITTING PARTY LIST

Province in which Party has contestant for a seat in the National Assembly	
Name of political party	
Address of party's main office	
Full names of designated office bearer for the party	

PART B

PARTY-LIST CANDIDATES

NAME OF PROVINCE …….

Full names of candidate on party list	*National Identity Number*	*Ward and province in which registered as voter*	*Telephone number*	*Email address*	*Physical address*	*Date of birth*	*Gender*	*Signature of candidate accepting nomination*
1.								

2.								
3.								
4.								
5.								
6.								

Notes

1. This list must contain names of six candidates.
2. The first name on the list must be that of a female and the remaining names must alternate between male and female candidates.
3. The names must be listed in the order the political party wishes them to be selected if the party qualifies for election of their party-list candidates, with the person at the top of the list as being the number 1 preference and so on.
4. A party-list candidate for the Senate—
   (a) must be registered as a voter in the province in which that person is standing;
   (b) must be a citizen of Zimbabwe;
   (c) must be 40 years or older
5. A party-list candidate may not be—
   (a) on the party list of a political party for the Senate in more than one province;
   (b) on Senate party lists for more than one political party;
   (c) on party lists for both the Senate and the National Assembly;
   (d) on the party list for both the Senate and the Provincial Council;
   (e) a constituency candidate for the National Assembly.

PART C

DECLARATION BY OFFICE-BEARER DESIGNATED BY POLITICAL PARTY

Full name of designated party office-bearer	
National Identity number of designated party office-bearer	
Full address of designated party office-bearer	
Name of political party	

I, ...(*name of designated party office-bearer*) do hereby certify:

1. I am authorized by my political party to make this sworn declaration;
2. I have carefully checked all the particulars of the party-list candidates listed above and I declare that, to the best of my knowledge and belief, the particulars are true and that all candidates are registered as voters on the voters roll in a ward within the Province in which

they are standing as party list candidates and are qualified to stand as candidates and are not disqualified under the electoral law from standing as candidates.

3. I further declare that the persons listed above do not appear on any other party list for our political party and that none of these persons is standing for election as a constituency member of the National Assembly or for election as a councillor for a local authority.

Signature ..... Date:.....

Form VN.3

PARTY LIST CANDIDATES FOR NATIONAL ASSEMBLY PARTY-LIST SEATS

PART XIA OF THE ELECTORAL ACT [*CHAPTER 2:13*]

Notes—

A political party contesting the National Assembly constituency elections may submit a party list for each province in which it is contesting. The party list for each province must have on it 6 female candidates.

This list must be lodged with the Provincial Elections Officer for the Province to which it relates. The Provincial Elections Officer will be the Nomination Officer for that Province.

This party list must be submitted to the Provincial Nomination Officer on nomination day. However, political parties are advised that it is in their interests to submit these lists to the head office of the Commission at least seventy-two hours before the nomination court sits so that the lists can be checked in advance of the sitting of the nomination court. In this way any problems with the list can be pointed out to the political party to enable it to rectify the problems timeously.

PART A

DETAILS OF PARTY SUBMITTING PARTY LIST

Province in which party has contestant for a seat in the National Assembly	
Name of political party	
Address of party's main office	
Full names of designated office bearer for the party	

PART B

PARTY-LIST CANDIDATES

NAME OF PROVINCE …….

Full names of candidate on party list	*National Identity Number*	*Ward and province in which registered as voter*	*Telephone number*	*Email address*	*Physical address*	*Date of birth*	*Gender*	*Signature of candidate accepting nomination*
1.								

2.								
3.								
4.								
5.								
6.								

PART C

DECLARATION BY OFFICE-BEARER DESIGNATED BY POLITICAL PARTY

Full name of designated party office-bearer	
National Identity number of designated party office-bearer	
Full address of designated party office-bearer	
Name of political party	

I, ...(*name of designated party office-bearer*) do hereby certify:

1. I am authorised by my political party to make this sworn declaration.
2. I have carefully checked all the particulars of the party-list candidates listed above and I declare that, to the best of my knowledge and belief, the particulars are true and that all candidates are registered as voters on the voters roll in a ward within the Province in which they are standing as party list candidates and are qualified to stand as candidates and are not disqualified under the electoral law from standing as candidates.
3. I further declare that the persons listed above do not appear on any other party list for our political party and that none of these persons is standing for election as a constituency member of the National Assembly or for election as a councillor for a local authority.

Signature ..... Date:.....

Notes

1. This list must contain names of six candidates.
2. The names must be listed in the order the political party wishes them to be selected if the party qualifies for election of their party-list candidates, with the person at the top of the list as being the number 1 preference and so on.
3. A party-list candidate for the National Assembly—
   (a) must be registered as a voter in the province in which that person is standing;
   (b) must be 21 years or older;
   (c) must be a citizen of Zimbabwe.
4. A party-list candidate may not be—
   (a) on the party list of a political party for the National Assembly in more than one province;

(b) on National Assembly party lists for more than one political party;

(c) on party lists for both the National Assembly and the Senate;

(d) on the party list for both the Senate and the Provincial Council;

(e) on a party list if that person is standing as a constituency member for the National Assembly;

(f) on the party list for the National Assembly and standing for election as a councillor for an urban or rural district council.

Form VN.4

CANDIDATES ON PARTY LIST FOR PROVINCIAL COUNCIL PARTY-LIST SEATS

PART XIA OF THE ELECTORAL ACT [*CHAPTER 2:13*]

A political party contesting the constituency elections for the National Assembly may submit a party list for the Provincial Council each Province in which it is contesting. The party list for each province must have on it 10 candidates.

This list must be lodged with the Provincial Elections Officer for the Province to which it relates. The Provincial Elections Officer will be the Nomination Officer for that Province.

This party list must be submitted to the Provincial Nomination Officer on nomination day. However, political parties are advised that it is in their interests to submit these lists to the head office of the Commission at least seventy-two hours before the nomination court sits so that the lists can be checked in advance of the sitting of the nomination court. In this way any problems with the list can be pointed out to the political party to enable it to rectify the problems timeously.

PART A

DETAILS OF PARTY SUBMITTING PARTY LIST

Province in which party has contestant for a seat in the National Assembly	
Name of political party	
Address of party's main office	
Full names of designated office bearer for the party	

PART B

PARTY-LIST CANDIDATES

NAME OF PROVINCE …….

Full names of candidate	*National Identity Number*	*Ward and province in which registered as voter*	*Telephone number*	*Email address*	*Physical address*	*Date of birth*	*Gender*	*Signature of candidate accepting nomination*
1.								
2.								

3.								
4.								
5.								
6.								
7.								
8.								
9.								
10.								

PART C

DECLARATION BY OFFICE-BEARER DESIGNATED BY POLITICAL PARTY

Full name of designated party office-bearer	
National Identity number of designated party office-bearer	
Full address of designated party office-bearer	
Name of political party	

I, ...(*name of designated party office-bearer*) do hereby certify:

1. I am authorised by my political party to make this sworn declaration.
2. I have carefully checked all the particulars of the party-list candidates listed above and I declare that, to the best of my knowledge and belief, the particulars are true and that all candidates are registered as voters on the voters roll in a ward within the Province in which they are standing as party list candidates and are qualified to stand as candidates and are not disqualified under the electoral law from standing as candidates.
3. I further declare that the persons listed above do not appear on any party list for our political party and that none of these persons is standing for election as a constituency member of the National Assembly or for election as a councillor for a local authority.

Signature ..... Date:.....

Notes

1. This must have the names of 10 candidates.
2. The first name on the party list must be that of a female and the remaining names must alternate between male and female candidates.
2. The names must be listed in the order the political party wishes them to be selected if the party qualifies for election of their party-list candidates, with the person at the top of the list as being the number 1 preference and so on.
3. A party-list candidate for the Provincial Council—

   (a) must be registered as a voter in the province in which that person is standing;

(b) must be 21 years or older;

(c) must be a citizen of Zimbabwe.

4. A party-list candidate may not be—

(a) on the party list of a political party for the Provincial Council in more than one province;

(b) on a party list for a provincial council and the Senate;

(c) on a party list for a provincial council and the National Assembly;

(d) on a party list if that person is standing as a constituency member for the National Assembly.

Form VN.5

LIST OF DESIGNATED PARTY OFFICE-BEARERS

SECTION 38A(1)(a) OF THE ELECTORAL ACT [*CHAPTER 2:13*]

Note:
Section 38A(1)(a) provides that a political party may provide to the appropriate provincial command centre a list of at least three office bearers of the party in the province who will be authorized to certify as required under Part XIV and section 46.

Name of political party: .....

NATIONAL DESIGNATED PARTY OFFICE-BEARERS

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

PROVINCIAL DESIGNATED PARTY OFFICE-BEARERS

BULAWAYO PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

HARARE PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MANICALAND PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	

National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MASHONALAND CENTRAL PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MASHONALAND EAST PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax	

number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MASHONALAND WEST PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MASVINGO PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MATABELELAND NORTH PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	

Full address and email or fax number	

MATABELELAND SOUTH PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

MIDLANDS PROVINCE

Designated Office Bearer 1

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 2

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Designated Office Bearer 3

Full names	
Signature	
National Identity Number	
Full address and email or fax number	

Form VN.6

CERTIFICATION OF ELIGIBILITY OF MEMBER OF THE PUBLIC SERVICE FOR NOMINATION AS A CANDIDATE AND FOR ELECTION AS A COUNCILLOR

SECTION 119(5) OF THE ELECTORAL ACT [*CHAPTER 2:13*]

Note:

It is provided in section 119(5) of the Electoral Act that a member of the Public Service is eligible for nomination as a candidate for and election as a councillor if the Secretary of the Ministry in which he or she is employed, with the concurrence of the Public Service Commission, has certified in the prescribed form that any of his or her duties as a councillor, should he or she be elected, would not conflict with his or her duties as an employee of the State.

Certification of eligibility

Surname: .....

First names: .....

Citizenship: .....

Residential address in full: .....

Postal address in full: .....

Occupation: .....

Employment code number: .....

Ministry or Government department: .....

Department and section numbers: .....

Position/Title: .....

Job description: .....

Comments of head of department: .....

Recommendation of head of department: .....

Secretary's recommendations: .....

Recommendation of Public Service Commission: .....

Signed: ..... Date: .....

Secretary of the Ministry

Signed: ..... Date: .....

for Public Service Commission

SECOND SCHEDULE (*Section 6*)

PROHIBITED SYMBOLS

1. A lion.
2. A bird of prey.

3. A rhinoceros.
4. A laurel wreath.
5. A leopard.
6. A cheetah.
7. An owl.
8. A sword.
9. A griffon.
10. A cobra.
11. A secretary bird.
12. A flaming torch.
13. An axe.
14. An elephant.
15. A buffalo.
16. A flame lily.